

Learn More Technologies — Credentials & Licenses

50+TechBridge as a WIOA-qualified nonprofit · Texas + Massachusetts · September 2026 · Internal use

Not legal advice

What it takes to operate 50+TechBridge as a *WIOA-qualified nonprofit*

WIOA-eligible on a brochure is not the same as being on a state's Eligible Training Provider List (ETPL). 501(c)(3) status is not the same as a career-school license. Texas MBE is a for-profit credential. The working model is two entities: keep Learn More Technologies LLC (MBE + invoices) and add a Texas nonprofit sidecar (grants + free seats). Do not convert the LLC.

DO NOT CONVERT THE LLC

Keep MBE on LMT

Texas HUB / MBE / NMSDC paths are for-profit. A 501(c)(3) sidecar funds free seats. The LLC still invoices institutions.

WIOA "QUALIFIED" MEANS

ETPL or a board contract

ITA money requires statewide ETPL. Boards can also buy cohort / incumbent-worker training without an ITA.

FIRST TWO GATES

TWC + Capital Area

Texas career-school license or written TWC exemption, then Workforce Solutions Capital Area → EDvera → statewide ETPL.

Read this first. This is an operating checklist compiled from public agency pages (TWC, IRS, Texas SOS / Comptroller, Mass.gov DOL / AGO / MDCS). Fees, forms, and board rules change. Confirm with a Texas nonprofit attorney, a Massachusetts charities/occupational-school counsel if you actually open there, and the local workforce board before filing. Locked public language only: 9 in-person locations in central Texas; 6 Austin Public Library branches; AARP-affiliated senior centers; Foundation Communities veterans program; WIOA-eligible; MBE-certified.

1. What you already have vs. what “nonprofit WIOA” actually requires

Status is based on LMT’s own files as of September 2026. Items marked **stated** are on materials, not independently verified against the issuing agency.

ITEM	STATUS	WHY IT MATTERS
Learn More Technologies LLC + assumed name / DBA 50+TechBridge	HAVE	Operating company. Keep this. Do not dissolve or convert it into the charity.
Texas MBE (stated active)	HAVE	For-profit path. Converting the LLC to a nonprofit typically kills MBE / HUB / NMSDC eligibility.
NAICS 611420 / 611430 / 624310	HAVE	Computer training, professional development, vocational rehab-adjacent. Keep on SAM and capability statement.
“WIOA-eligible” on materials	STATED	Marketing alignment. Not ETPL. Boards will ask for the listing, not the brochure line.
9-location central Texas footprint (6 APL, AARP-affiliated senior centers, Foundation Communities veterans)	HAVE	Past-performance story. Use locked language only. Get site MOUs / letters on partner letterhead.
Facilitator kit, spine, sign-in, pre/post surveys	HAVE	Attendance + outcomes packet boards expect. Keep collecting cohort-level completion data now.
Nexus 2024 delivered; Elevate submitted 8/13/26	HAVE / IN REVIEW	Grant fuel, not ETPL. Restricted funds. Do not treat as operating profit.
501(c)(3)	IN PROCESS	Need a <i>separate</i> Texas nonprofit corporation + IRS determination letter. The LLC cannot “become” the charity without losing MBE.
SAM.gov + Unique Entity ID (UEI)	CONFIRM / NEED	Required for most federal awards. Nonprofit and LLC each need their own UEI if both will take federal money.
Texas ETPL (TWC statewide list)	NEED	This is what makes ITA / WIOA Title I tuition payable to the provider.
TWC Career Schools Certificate of Approval or written exemption	NEED	Gate in front of Texas ETPL. 501(c)(3) does not auto-exempt. TWC decides.
Massachusetts foreign qualify + AG charity + MassHire ETPL	NEED (IF OPERATING THERE)	Do not fundraise or teach in MA until SOS + AGO are done. ETPL is a separate MassHire / TrainingPro process.
Named second facilitator, unified ITA-range price list, capability statement, past-performance one-pager	NEED	Sales + board packet. Cohort \$7.5–15k and annual \$25–60k must sit inside local ITA caps once ETPL is live.

2. Recommended legal structure (do this, not a conversion)

Entity A — keep. Learn More Technologies LLC dba 50+TechBridge. For-profit. Holds Texas MBE. Invoices employers, libraries, boards, and keynotes. Signs site-license and facilitator contracts. Applies to Texas ETPL as the training provider *unless* counsel puts the school license on the nonprofit instead — pick one provider of record and stick to it.

Entity B — add. New Texas nonprofit corporation (suggested working name distinct from the LLC DBA, e.g. 50+TechBridge Foundation / Digital Pioneer Institute — lawyer confirms name). Files IRS Form 1023. Receives grants. Buys free seats from the LLC or scholarships learners. Never the MBE vehicle.

Name collision. The LLC already uses 50+TechBridge as a DBA. Do not put the identical assumed name on the charity without counsel. Boards, banks, and SAM.gov treat two entities with the same public name as a red flag. One brand, two legal names, a written license/services agreement between them.

Interim if the IRS letter is slow: fiscal sponsorship under an existing 501(c)(3) can receive grants now. The sponsor, not LMT, is the legal grantee. Use only with a written fiscal-sponsor agreement.

3. Federal layer (both states)

ENTITY + TAX-EXEMPT

CREDENTIAL	WHO / FORM	NOTES
Employer Identification Number	IRS EIN (online)	Nonprofit gets its own EIN. Do not reuse the LLC EIN.
501(c)(3) recognition	IRS Form 1023 (or 1023-EZ if eligible)	User fee (commonly \$600 / \$275). Purpose, dissolution, and inurement clauses must already be in the Texas certificate + bylaws. Determination letter is the document everyone else wants.
Annual IRS information return	Form 990 / 990-EZ / 990-N	Due each year. Three missed years = automatic revocation.
Public charity tests	Board + fundraising mix	Need a real board (Texas minimum 3 directors). Independent majority is the practical 501(c)(3) standard. Conflict-of-interest policy: Brian cannot be the sole director who also invoices the charity from the LLC without a written related-party policy.

FEDERAL AWARDS + WIOA CIVIL RIGHTS

CREDENTIAL	WHO / FORM	NOTES
SAM.gov registration + UEI	sam.gov	Free. Annual renewal. Entity must not be debarred (check SAM exclusions). Needed before most federal pass-through.
WIOA Section 188 EO / nondiscrimination	USDOL CRC + state EO officer	Written EO policy, grievance procedure, "Equal Opportunity is the Law" notice, reasonable accommodation process, data on race/sex/disability as the board requires. 29 CFR Part 38.
ADA / Section 504 accessibility	Program + venues	In-person sites (libraries, senior centers) need accessible rooms and materials. Digital materials need a basic accessibility standard.
Performance data	WIOA Sec. 116 / state ETPL rules	Completion, credential attainment, employment / entered employment. Start logging every cohort now even before ETPL. New programs can often list with an explanation; they cannot stay listed with empty outcomes.
Occupational alignment	Local Targeted Occupation List	Design gate. Generic "AI literacy" may not ITA-qualify. Frame the paid WIOA SKU as occupational skills toward a recognized credential and a board target occupation (IT / office / digital support / job-search + occupational skills). Title I contracted / incumbent-worker training, or Title II Adult Education & Literacy <i>combined with</i> occupational skills (20 CFR §680.350), are the fallback if ITA is a stretch.

Who is "WIOA-qualified"? The *learner* is determined eligible by the career center. The *provider* is qualified when (a) on the state ETPL for ITAs, or (b) under a board contract for cohort / OJT / incumbent-worker / customized training. You cannot self-certify either one.

4. Texas — form the charity, then the school, then ETPL

A. NONPROFIT CORPORATION (ENTITY B)

LICENSE / FILING	AGENCY + FORM	HAVE / NEED
Certificate of Formation — Nonprofit Corporation	Texas SOS Form 202 (~\$25)	NEED Purpose + 501(c)(3) language + dissolution clause. Minimum 3 directors. Registered agent in Texas.
Bylaws, conflict-of-interest, whistleblower, document-retention, related-party (LLC) policy	Board adopts	NEED IRS and grantmakers will ask. Especially because the founder also owns the LLC.
Assumed name (if the charity will use a public brand)	County assumed-name + SOS as needed	NEED IF USED Do not clone the LLC's 50+TechBridge DBA without counsel.
Nonprofit periodic report	Texas SOS Form 802 (when SOS requests; not more than once / 4 years)	CALENDAR Missing it can terminate the corporation. Separate from IRS 990.
State tax exemption (sales + franchise)	Comptroller AP-204 after IRS letter (AP-205/AP-207 if claiming charitable/educational extras)	AFTER IRS 501(c)(3) is federal only until AP-204 is approved. Then Form 01-339 exemption certificates on purchases.
Charitable solicitation registration	Texas AG (most 501(c)(3)s are <i>not</i> in a 39-state-style registry)	USUALLY N/A IN TX Still need city permits if you do in-person ask events. Other states (including MA) do require registration before you solicit there.

B. CAREER SCHOOL LICENSE — THE TEXAS ETPL GATE

Texas Education Code Chapter 132: almost all career training requires a TWC **Certificate of Approval** unless TWC grants a written exemption. A 501(c)(3) letter is evidence for an exemption request; it is not the exemption. Local boards will not send you to statewide ETPL without the license *or* the TWC exemption letter. TWC Career Schools; 40 TAC §840.10; board ETPL flowcharts

PATH	WHAT YOU FILE	WHEN TO USE IT
Exemption request	TWC Career Schools exemption packet (historically PS-017 / CSC-017) + IRS letter + proof the school and the nonprofit are the same operation	First ask. TWC answers in writing. No letter = not exempt. Typical review if complete is often cited by boards as about 4–6 weeks — do not count on that.
Certificate of Approval	Full new-school application: financials, catalog, instructors, refund policy, surety/financial stability as TWC requires	If TWC says you are not exempt. This is a real school license. Budget months, not weeks.

C. WIOA / ETPL IN TEXAS

1. Call **Workforce Solutions Capital Area** (Austin local board) as the first board of record. Other Texas boards can use a statewide listing later if the program is on the Targeted Occupation List.
2. Board issues EDvera access. You upload provider, campus, and program files.
3. Attach TWC Certificate of Approval *or* TWC exemption letter. Registered apprenticeship is the other statutory path — not yours.
4. Map each paid program to a SOC / target occupation. Attach employer support letter or an employer advisory committee (boards commonly require one or the other).
5. Submit the **Student Data Report** (all students in the program, not only WIOA). New programs: file what you have from community cohorts and say the course is new where data are thin.
6. Local board recommends → TWC adds the program to the **statewide ETPL**. Listing ≠ referrals. ITA caps are set locally (often roughly \$7k–\$9k per participant in many Texas regions — confirm with Capital Area before you print a price).

D. TEXAS EXTRAS PEOPLE SKIP

- **Workers' compensation** — optional for many private Texas employers, but venues, boards, and grants will require a certificate. Buy it if you have any employee (facilitator).
- **General liability + additional insured** — libraries and senior centers will require COI naming them. Professional / educators' liability for instruction. Cyber / PII if you store WIOA data.
- **Unemployment tax** — TWC UI account if you have employees.
- **CMBL / Texas HUB** — state-agency bidding. HUB is for-profit; keep it on the LLC if eligible. City of Austin MBE (if that is the current cert) stays on the LLC.
- **Site MOUs** — written facility use with APL branches, AARP-affiliated centers, Foundation Communities. ETPL “campus” addresses must match where you actually teach.

5. Massachusetts — only if you actually operate or fundraise there

Do not treat Massachusetts as a brochure line. The moment you solicit donations, hire, lease, or teach in MA, clocks start. A foreign (Texas) charity must register with the MA Secretary of the Commonwealth **within 10 days of commencing business** and with the Attorney General **before** charitable work or fundraising. Mass.gov AGO charities FAQ

A. FOREIGN NONPROFIT + CHARITY REGISTRATION

LICENSE / FILING	AGENCY	TRIGGER
Foreign corporation qualification	MA SOS Corporations Division (certificate of registration + Texas certificate of legal existence + fee)	Within 10 days of commencing business in MA.
Public charity initial registration	AGO Non-Profit Organizations / Public Charities Division — Charity Portal (articles, bylaws, board list, IRS letter)	Before charitable activity or solicitation. AGO assigns an AG Number.
Certificate of Solicitation	AGO (Schedule A-2 if you need it before the first Form PC)	Before asking anyone in MA for money (including online if MA residents are targeted).
Annual Form PC + IRS 990	AGO Charity Portal; due 4.5 months after fiscal year end; fee scales with gross support; CPA audit/review at AGO thresholds	Every year you do business in MA. Foreign charities file PC for the first MA fiscal year.
DOR Certificate of Good Standing	MA Department of Revenue	Often required for ETPL, licensing, and state vendor setup.
Workers' compensation	MA DIA — coverage is generally required if you have MA employees	Even a part-time MA facilitator can trip this.
Unemployment (DUA) + paid family/medical if thresholds met	MA DUA / DFML	If you have MA wages.
COMMBUYS / state vendor code	MA OSD	If you want state contracts, not only WIOA ITAs.

B. PRIVATE OCCUPATIONAL SCHOOL LICENSE (G.L. C. 112 §263)

Massachusetts licenses private post-secondary occupational schools — for-profit *and* nonprofit. **Step 1 is always the License Determination** with the Division of Occupational Licensure (Office of Private Occupational School Education). Do not skip to ETPL and assume you are fine.

- **If DOL says you must be licensed:** Office of the State Auditor financial / surety review → ePLACE application → nonprofit application fee **\$1,250** (for-profit is \$2,500) → surety bond in the OSA amount → enrollment agreement (G.L. c. 255 §13K) → catalog / policies → instructor CORI + SORI + certification packets → building and fire inspection if you have a MA facility → DOL site visit. Incomplete applications sit open 9 months, then die.
- **Distance / online exemption:** schools that provide only distance education and have **no place of business in the Commonwealth** are typically outside the license. Flying in to teach at a Boston library, senior center, or MassHire site is in-person MA delivery — get the License Determination in writing before you advertise a Massachusetts cohort.
- Corporations that were not formed as schools may need to amend articles with SOS to include educational/school purposes.

C. MASSHIRE ETPL (TRAININGPRO)

1. Register in **TrainingPro** (MDCS). Provider review is state; **course** review is the local MassHire Workforce Board.
2. Applications / renewals are due **before June 1** each year. Miss it and you wait a cycle.
3. **New providers** (and Trade / Section 30) are told to include course performance data from the past two years. If the course is genuinely new, say so in TrainingPro and start tracking the day the first MA or online cohort runs. Minimums commonly cited: completion ~70% plus entered-employment vs. local unemployment — confirm the current MDCS ETPL memo before you apply.
4. Same occupational-alignment problem as Texas: the MassHire board must see a job, a credential, and a price, not a community AI workshop.

Practical sequence for MA: Do not open a Massachusetts site until Texas ETPL is live and one facilitator exists. When you do: SOS foreign qualify → AGO charity + solicitation certificate → DOL License Determination → then TrainingPro. Fundraising emails to MA donors without the AGO certificate is the fastest way to get a problem.

6. Everything else you need (operations, not just licenses)

ITEM	STATUS	WHY
Written services / IP license between LLC and nonprofit	NEED	Who owns the spine, Barb, AGENTIC50, websites. Who invoices. IRS related-party.
Separate bank accounts, bookkeeping, and board minutes	NEED	Commingling LLC and charity is how 501(c)(3)s get revoked and MBE files get messy.
D&O insurance (nonprofit board) + GL + professional + cyber	NEED	Directors will not serve; venues will not host; WIOA PII is a breach target.
Named facilitator (even part-time) + onboarding file	NEED	Funding brief: month-18 hard pivot if still 100% Brian-delivered.
Unified price list inside ITA caps	NEED	90-minute pilot (no public \$ until unified); cohort \$7.5–15k; annual \$25–60k; keynote floor \$5k.
Capability statement + past-performance one-pager	NEED	Locked proof only. No 347 / 264+ / ~100.
Recognized credential design (certificate that boards will count)	PARTIAL	You have a program certificate. Map it to a credential boards recognize, or stack an industry cert (e.g. IC3 / Google / CompTIA ITF+) as the WIOA fork.
Employer advisory committee + 1–2 employer support letters	NEED	Texas EDvera / TWC expect employer demand, not only library goodwill.
WIOA PII / data-sharing protocol	NEED	Sign-in sheets already have a data notice. Add locked storage, retention, and a board data-sharing agreement. Do not put SSNs on paper sign-in.
EO officer (can be part-time / designated staff)	NEED	Section 188. Brian can be designated until there is staff; put it in writing.
Background checks for instructors	NEED FOR MA; WISE IN TX	MA occupational school: CORI/SORI required. Texas libraries/senior sites often require them in the MOU.
Enrollment agreement / catalog / refund policy	NEED IF LICENSED AS A SCHOOL	TWC and MA DOL both treat this as consumer protection, not optional branding.
Charitable solicitation in other states	IF YOU FUNDRAISE NATIONALLY	MA is strict. Many other states are too. Texas is the exception, not the rule.

7. Suggested order (do not file Massachusetts first)

- This week:** Confirm SAM.gov / UEI on the LLC. Confirm the exact name on the Texas MBE certificate. Start a cohort outcomes spreadsheet (completion, credential, employment) from existing sign-in/surveys.
- Counsel call:** Dual-entity plan, name of the charity, related-party agreement, whether the *LLC* or the *nonprofit* will be the ETPL provider of record.
- Form Entity B:** Texas SOS Form 202 → EIN → bylaws/policies → board of 3 → IRS Form 1023. Fiscal sponsor only if a grant cannot wait.
- TWC Career Schools:** Exemption request (or Certificate of Approval if they say no). Do this before promising boards a listing date.
- Workforce Solutions Capital Area:** EDvera packet, employer letter, Student Data Report, ITA-range prices. Then statewide ETPL.
- Comptroller AP-204** after the IRS determination letter. Open a charity bank account. Written seat-purchase agreement: charity buys free seats from the LLC.
- Massachusetts (later):** SOS foreign qualify → AGO Charity Portal + Certificate of Solicitation → DOL License Determination → TrainingPro by the June 1 cycle, with two years of data or a documented new-course explanation.

Bottom line: You already have the operating company, the MBE, the footprint, and the teaching system. You do *not* yet have a charity, a TWC school determination, or an ETPL listing. Those three — plus SAM.gov confirmed — are the licenses that turn “WIOA-eligible” copy into money. Keep the LLC. Add the nonprofit. Do not convert.

PRIMARY SOURCES TO RE-CHECK BEFORE FILING

- Texas SOS Form 202 (nonprofit certificate) and Form 802 (periodic report) — sos.state.tx.us
- Texas Comptroller AP-204 — comptroller.texas.gov/taxes/exempt
- TWC Career Schools certificates and exemptions — twc.texas.gov (Career Schools & Colleges)
- TWC Eligible Training Providers — local board first (Workforce Solutions Capital Area), then statewide ETPL
- IRS Form 1023 / 1023-EZ and [SAM.gov](https://sam.gov)
- Mass.gov: AGO charities FAQ; DOL “Apply for an occupational school license”; MDCS “Requirements to qualify on Mass ETPL” / TrainingPro
- USDOL WIOA Section 188 / 29 CFR Part 38